

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

-----X
SVETLANA VROUBLEVSKAIA and VITALIY BYKOV,

Plaintiffs,

Plaintiff designates Kings
County as the place of trial

-against-

Basis of the venue is Locus of
Occurrence

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
DANIEL WHITE, Shield No. 12223 and JOHN DOES
– Police Officers as yet unidentified,

SUMMONS

Plaintiff resides at
1970 East 18th Street
Apt B16
Brooklyn, NY 11229

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendants

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

POLICE OFFICER DANIEL WHITE
SHIELD NO. 12223
60th Precinct
2951 West 8th Street
Brooklyn, NY 11224

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SVETLANA VROUBLEVSKAIA and VITALIY BYKOV,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
DANIEL WHITE, Shield No. 12223 and JOHN DOES
– Police Officers as yet unidentified,

Defendants.

-----X

Plaintiffs by their attorneys, RUBENSTEIN & RYNECKI, ESQS, complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
ON BEHALF OF SVETLANA VROUBLEVSKAIA**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of
the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 24, 2016, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff, SVETLANA VROUBLEVAKAIA’S

demands for adjustment or payment thereof was served, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That prior hereto on June 24, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff, VITALIY BYKOV'S demands for adjustment or payment thereof was served, and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. That on September 15, 2016, pursuant to the General Municipal Law, Statutory 50-H hearings were held.

7. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SVETLANA VROUBLEVSKAIA, was assaulted and battered by POLICE OFFICER DANIEL WHITE and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

9. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DANIEL WHITE and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, SVETLANA VROUBLEVSKAIA, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

11. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

12. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT
ON BEHALF OF VITALIY BYKOV**

13. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "12" inclusive with the same force and effect as if more fully set forth at length herein.

14. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, VITALIY BYKOV, was assaulted and battered by POLICE OFFICER DANIEL WHITE and JOHN DOES-Police Officers as yet unidentified, who were

acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

15. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

16. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER DANIEL WHITE and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, VITALIY BYKOV, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

17. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

18. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

19. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF SVETLANA VROUBLEVSKAIA**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

22. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SVETLANA VROUBLEVSKAIA, was lawfully present at or near the intersection of West 27th Street and on the Coney Island Boardwalk, County of Kings, City and State of New York, when POLICE OFFICER DANIEL WHITE and JOHN DOES – Police Officers as yet unidentified, employees of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and assigned to the 60th Precinct, did, while plaintiff was lawfully at said location in a motor vehicle, illegally and without a proper warrant or cause, did approach plaintiff, cause her to exit the vehicle and falsely arrested and imprisoned the plaintiff and harassed the plaintiff.

23. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DANIE WHITE, JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, SVETLANA VROUBLEVSKAIA.

24. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

25. That as a result of the aforesaid false arrest and confinement, plaintiff, SVETLANA VROUBLEVSKAIA, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

26. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF VITALIY BYKOV**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, VITALIY BYKOV, was lawfully present at or near the intersection of West 27th Street and on the Coney Island Boardwalk, County of Kings, City and State of New York, when POLICE OFFICER DANIEL WHITE and JOHN DOES – Police Officers as yet unidentified, employees of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and assigned to the 60th Precinct, did, while plaintiff was lawfully at said location in a motor vehicle, illegally and without a proper warrant or cause, did approach plaintiff, caused him to exit the vehicle and falsely arrested and imprisoned the plaintiff and harassed said

claimant.

29. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER DANIEL WHITE and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, VITALIY BYKOV.

30. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

31. That as a result of the aforesaid false arrest and confinement, plaintiff, VITALIY BYKOV, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

32. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF SVETLANA VROUBLEVSKAIA**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police

Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

35. That defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

36. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF VITALIY BYKOV**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "35" inclusive with the same force and effect as if more fully set forth at length herein.

38. That on May 10, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

39. That defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

40. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON
BEHALF OF SVETLANA VROUBLEVSKAIA**

41. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "40" inclusive with the same force and effect as if more fully set forth at length herein.

42. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, who falsely arrested, falsely imprisoned and violated the civil rights of the plaintiff, SVETLANA VROUBLEVSKAIA.

43. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

44. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON
BEHALF OF VITALIY BYKOV**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set

forth at length herein.

46. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, who falsely arrested, falsely imprisoned, assaulted, battered and violated the civil rights of the plaintiff, VITALIY BYKOV.

47. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

48. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF SVETLANA VROUBLEVSKAIA**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, falsely arrested, falsely arrested, assaulted and battered the plaintiff,

SVETLANA VROUBLEVSKAIA, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

51. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, SVETLANA VROUBLEVSKAIA, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

52. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

53. That the false arrest, false imprisonment, assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

54. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIE WHITE, JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

55. That the defendants' actions were not privileged or immune.

56. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they

deprived plaintiff of her civil rights.

57. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF VITALIY BYKOV**

58. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "57" inclusive with the same force and effect as if more fully set forth at length herein.

59. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, VITALIY BYKOV, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

60. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, VITALIY BYKOV, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

61. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

62. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

63. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

64. That the defendants' actions were not privileged or immune.

65. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER DANIEL WHITE JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

66. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF SVETLANA VROUBLEVSKAIA**

67. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "66" inclusive with the same force and effect as if more fully set forth at length herein.

68. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

69. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY

POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

70. By the reason of the foregoing, the plaintiff, SVETLANA VROUBLEVSKAIA, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF VITALIY BYKOV**

71. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "70" inclusive with the same force and effect as if more fully set forth at length herein.

72. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

73. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants, POLICE OFFICER DANIEL WHITE, JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

74. By the reason of the foregoing, the plaintiff, VITALIY BYKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, SVETLANA VROUBLEVSKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, VITALIY BYKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, SVETLANA VROUBLEVSKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, VITALIY BYKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, SVETLANA VROUBLEVSKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, VITALIY BYKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, SVETLANA VROUBLEVSKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Court on the Seventh Cause of Action; plaintiff, VITALIY BYKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eighth Cause of Action; plaintiff, SVETLANA VROUBLESKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Ninth Cause of Action; plaintiff, VITALIY BYKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Tenth Cause of Action; plaintiff, SVETLANA VROUBLESKAIA, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Eleventh Cause of Action; plaintiff, VITALIY BYKOVE, demands judgment both

compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts
on the Twelfth Cause of Action; and the costs and disbursements of this action.

DATED: Brooklyn, New York
March 13, 2017

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
March 22, 2017



Scott Rynecki

NOTICE OF ENTRY

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated, Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on at M.

Dated, Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

Index No. Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SVETLANA VROUBLEVSKAIA and VITALIY BYKOV,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
DANIEL WHITE, Shield No.12223 and JOHN DOES
-Police Officers as yet unidentified,

Defendants.

Signature (Rule 130-1.1-a)
SUMMONS and VERIFIED COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.
Dated

.....

Attorney(s) for

1500 - BlumbergExcellor Inc., NYC 10013